ACC
ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	1st Commission Meeting
DATE:	6 January 2017
TIME:	2.00 P.M.
VENUE:	Chairperson's Chamber

#	AGENDA	DECISION
1.	Way Forward: Complaint Review Report for Complaints qualified for investigation for 2006 to 2015 submitted by the Task Force.	The Screening Committee to further review the Report, make changes and present its recommendation to the Commission for final endorsement. Thereafter the same committee is to prioritize the investigation from the revised list of complaints.
2.	BNB's claim of defaulted loan from the auction proceeds of Anu Lamgadey's vehicles. Two trucks mortgaged with BNBL were seized and auctioned by ACC.	Noting that the action to be taken on this case will set the precedence for future cases, the Legal Division to do a comprehensive review of the applicable legal provisions in the ACAB as well as related laws such as the Financial Institutions Act and submit recommendations to Commission.
3.	INR deposited into Bhutanese Banks: Unconfirmed information indicate of more than 1.5 billion INR deposited. Should ACC carry out preliminary investigation for any concealment of income, legality of sources, etc.	Discuss with Governor, RMA first to find out if RMA is doing anything on this front and report back to the Commission. Based on the outcome of the meeting, issues pertaining to tax evasion, etc. and next steps may be initiated with the Ministry of Finance.
4.	Review/endorse Agenda for meeting of financial institutions and ACC as submitted by DoI.	Agreed in principle for a meeting with the FIs & RMA. DoI and DoPE to jointly prepare a proposal on the issues to be discussed in the meeting.
5.	As stipulated in the manual, after an investigation, DoI identifies systemic issues and gives it to DoPE who in turn makes recommendations to the agency concerned. This does not seem to be efficient and needs review.	DoI and DoPE to discuss and suggest ways to improve the current practice. The possibility of making a joint presentation to the agency concerned by DoI and DoPE at the time of sending the report may be explored.
6 .	Rationalization of ACC - Professional Allowance: DoPS – DMD & SPMD; and Principal IPO.	Commission to review the proposal and decide at the next meeting. The allowance for the Principal IPO to be stopped with effect from 1/1/17.

7.	Internal transfer of professionals	Commissioner-in-Charge to discuss with the Chiefs of DoI on the impact of Phuntsho Namgay's transfer on the investigative capability of DoI; what skills he brings to TSD that is lacking at the moment, etc. Discussed at length on HRC's recommendation to transfer Kin Dorji to TSD but could not take decision for want of additional information and workable strategy which would ensure that the current support and advisory services he provides especially to the Secretariat can be continued.
8.	Septier's proposal to replace the Guardian System: Way Forward	Commission noted that Septier's commitment is still lacking in their proposal pertaining to "What next" if the new equipment also has problems and directed TSD to revise the draft proposal which should include the following: - Time frame with activities. - Relevant Provisions from the existing contract(s). - Final evaluation by a neutral, third party. - Alternatives such as refunding the cost, taking up the issue through diplomatic channels, etc. should the new equipment also not work. - The final agreement to be drawn up and contract signed prior to initiating any implementation.
9.		

The Commission also decided that henceforth the formal Commission meeting will be held every Tuesday at 2 p.m. However, this regular, weekly meeting is not intended to replace the various on-going Commission meetings.

Kin Dorji, currently attached with the Commission to provide strategic support, will serve as the Member Secretary.

Commissioner | Commissioner | 9/1/17 Chairperson